

Doretta

CHICKASAW TRIBAL LEGISLATURE

CR 6-27 Resolution No. 89-27

Amendments to Enactment No. 17, "The Chickasaw Seal Act"

WHEREAS, the Chickasaw Nation is a federally recognized Indian tribe located in south central Oklahoma, and

WHEREAS, the Chickasaw Tribal Legislature is empowered by Article VII, Section 4 of the Constitution of the Chickasaw Nation to enact rules and regulations pertaining to the Chickasaw Nation, and

WHEREAS, Governor Bill Anoatubby, chief executive officer of the tribe, or his designee, is authorized to enter into, negotiate, modify, amend and sign grants, contracts and other agreements on behalf of the Chickasaw Nation, and

WHEREAS, the Chickasaw Tribal Legislature has, in fulfillment of its obligations and duties, adopted Enactment No. 17 on November 21, 1986, to afford certain protections to the Great Seal of the Chickasaw Nation, and

WHEREAS, the tribal court has since found that this measure was not specific in its granting of certain protections to the Seal,

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby amends Enactment No. 17 in the following manner:

1. Add the following explanation at the top of the Act, beneath the Seal:

"To afford proper recognition to previous acts of the Chickasaw Tribal Legislature and to establish legal authority for the use of the Great Seal of the Chickasaw Nation, and for other purposes."

2. Add the following words to the end of the authors line:

"Amended on November 18, 1988"

3. In Section 1 of the Act, reword the first sentence to read:

"To establish legal authority for any and all uses of the Great Seal of the Chickasaw Nation."

4. In Section 2, (1), insert the following words before the semi-colon:

"after being in the possession of the United States Government since Oklahoma statehood in 1907"

5. In Section 2, (4), delete the entire sentence and insert:

"A need exists for affording adequate and safe protections of and for the Great Seal of the Chickasaw Nation;"

6. In Section 2, add new (5):

"A need exists for the regulation of the uses to and for which the Great Seal of the Chickasaw Nation may be put."

7. In Section 3, insert new definition (1):

"(1) "The Great Seal of the Chickasaw Nation" or "Seal" means any representation of the seal adopted

by the First Chickasaw Tribal Legislature held after the formation of the Chickasaw Nation in its present location, as created by that legislature on March 4, 1856, and still utilized by the Chickasaw Nation, and any other likeness or reproduction thereof, including but not limited to the one impression seal in the possession of the governor of the Chickasaw Nation, which consists of a likeness of Chief Tishomingo holding a shield and bow, with four swan feathers in his headband and swan mantle across his chest and a quiver of arrows at his side, standing in front of the Mississippi River with trees and shrubs from that area appearing in the background and foreground, surrounded by the words, 'The Great Seal of the Chickasaw Nation,' whether the seal be in full color, any combination of colors or in one color,"

8. Delete definition (1) "chairman".

9. In definition (2), delete the words, "originally adopted by the people" and insert the words, "as ratified by the voters of the Chickasaw Nation".

10. In definition (3), delete the words, "shall mean" and insert the word, "means"; also delete the word, "independent".

11. In definition (4), insert the word, "Chickasaw" before the words, "Tribal Legislature" and delete the words, "the tribal legislature of the Chickasaw Nation, which is the recognized governing body of the tribe" and insert the words, "means the legislative branch of the Chickasaw tribal government as created and empowered by Articles V, VI, VII, VIII and IX of the Constitution;"

12. Insert new definition (5):

"(5) "Reproduce" or "Reproduction" means any sort or form of copying, reproducing, enlarging, shrinking, or imprinting in monochromatic color schemes or in full color, including xerography, printing, and any other means, either manual or mechanical;"

13. Insert new definition (6):

"(6) "Governmental Activity" means a function of the tribal government in providing for its own support, in providing services to the public or during the course of its operations of business entities which are wholly or partially owned by the Chickasaw Nation."

14. In Section 4, delete parts (1), (2), (3) and (4), and insert:

"(1) reaffirms and affords recognition to the Great Seal of the Chickasaw Nation as adopted by the Chickasaw people on March 4, 1856;

(2) establishes that the Great Seal of the Chickasaw Nation shall be affixed to all official government documents and that the original impression seal shall be kept by the governor and used by him officially in the performance of his duties;

(3) reserves any and all rights of the use of the Great Seal of the Chickasaw Nation to the tribal government established in the Constitution, in the course of governmental activities; provided, approval for the use of any sort of reproduction of the Seal may be granted by the Chickasaw Tribal Legislature to an entity, person or organization which is outside of or not a part of the tribal government upon being petitioned for such use; and further provided, that such approval shall be obtained before the Seal is put to any use by any entity or person which is outside of or not a part of the tribal government;

(4) prohibits the use of the Seal in any manner whatsoever, or the reproduction or display thereof, by any entity, organization or person outside of the tribal government, without the express written approval and permission of the Chickasaw Tribal Legislature;

(5) requires that any unauthorized display or representation of the Seal shall constitute an unlawful

act, punishable upon determination of guilt by the tribal court."

15. Create new Section 5.:

"The governor, lt. governor, or any member of the legislature may direct any entity, person or organization found to be violating the terms of this Act to halt their use of the Seal and may, if deemed proper, present such alleged violation to the tribal court in accordance with the rules and procedures of the tribal court for filing such petitions."

16. Create new Section 6.:

"This Act shall repeal and nullify any other legislation regarding the control or use of the Great Seal of the Chickasaw Nation."

17. Create new Section 7.:

"The provisions of this Act shall go into immediate effect upon its concurrence by the Governor."

Adopted in regular session of the Chickasaw Tribal Legislature, meeting on November 18, 1988, at Ada, Oklahoma, by a vote of 8 ayes, 2 nays and 3 abstentions.



Joe Kent Abbott
Chairperson
Chickasaw Tribal Legislature

Gena Duncan
Secretary
Chickasaw Tribal Legislature

Concur: Bill Anoatubby Date: DEC 2 1988
Bill Anoatubby, Governor
The Chickasaw Nation